

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 977

BY HOSTETLER

AN ACT

RELATING TO CLOUD SEEDING; AMENDING SECTION 42-4301, IDAHO CODE, TO REVISE PROVISIONS REGARDING CLOUD SEEDING; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 42-4301, Idaho Code, be, and the same is hereby amended to read as follows:

42-4301. CLOUD SEEDING. (1) The legislature finds that:

(a) Idaho's economy and the welfare of its citizens depend upon a reliable and sustainable water supply. It is essential, therefore, that the state continues to identify, develop, and implement projects that augment and sustain the state's water resources are hereby declared to be a public use subject to the regulation and control of the state in the manner prescribed by law.

(b) The cloud seeding program developed and implemented by the Idaho water resource board, in cooperation with interested stakeholders, presents a unique and innovative opportunity to augment and sustain the water resources of the state has insufficiently proven to be a sound investment of state resources.

(c) Augmenting water supplies through cloud seeding is in the public interest. Public benefits of cloud seeding include drought mitigation, protection of water rights, protection of municipal and business activities dependent on water, water quality, recreation, and fish and wildlife. While augmenting water supplies is in the public interest, insufficient data exists to establish the effectiveness or safety of cloud seeding to augment water supplies.

(d) Data accumulated and analysis undertaken since the initiation of the cloud seeding program demonstrates that cloud seeding has not reliably resulted in an annual increase in the water supplies in the basins in which cloud seeding has been performed. However, additional research and analysis is necessary to determine the precise nature and extent of those increases. The legislature recommends that such research be continued as the cloud seeding program progresses and that annual reports on such research be provided to the legislature. According to the 2024 government accountability office report on cloud seeding technology that assessed its effectiveness, "when uncertainty was considered in estimates of cloud seeding effectiveness, the estimated effect was not distinguishable from zero with a high degree of statistical confidence (e.g., with 95 percent confidence)."

(e) The legislature shall reevaluate the cloud seeding program and may suspend or authorize future cloud seeding projects or programs after receiving an independent, third-party report, which includes an en-

1 vironmental impact assessment, that indicates the project or program
 2 should not continue or be allowed to commence.

3 ~~(e) (f) The legislature recognizes that expansion of the cloud seeding~~
 4 ~~program may benefit basins throughout the state that experience de-~~
 5 ~~pleted or insufficient water supplies, and the legislature recommends~~
 6 requires that the water resource board complete an assessment of basins
 7 and work with affected stakeholders to ~~implement the propose a~~ cloud
 8 seeding program in basins that would benefit from the program, for ap-
 9 proval by the legislature.

10 (2) As used in this chapter, "cloud seeding" means all acts undertaken
 11 to artificially distribute or create nuclei in cloud masses for the purposes
 12 of inducing precipitation, cloud forms, or other meteorological parameters.
 13 ~~Cloud seeding for the suppression of fog and frost prevention measures for~~
 14 ~~the protection of orchards and crops are excluded from the coverage of this~~
 15 ~~chapter, including for suppression measures and frost prevention measures.~~

16 (3) ~~The water resource board shall authorize, and may sponsor or de-~~
 17 ~~velop, local or statewide cloud seeding programs and A cloud seeding pro-~~
 18 ~~gram or project shall not be implemented without first receiving legislative~~
 19 approval. The legislature may contract any individual or organization for
 20 consultation and assistance in developing cloud seeding programs or in fur-
 21 thering research related to cloud seeding experimentation.

22 (4) State funds ~~may~~ shall not be used or expended on cloud seeding pro-
 23 ~~grams only in basins where the water resource board finds that existing water~~
 24 ~~supplies are not sufficient to support existing water rights, water quality,~~
 25 ~~recreation, or fish and wildlife uses dependent on those water supplies.~~

26 (5) Water generated through cloud seeding shall be distributed in ac-
 27 cordance with the prior appropriation doctrine.

28 ~~(5) (6) The act of cloud seeding pursuant to a project funded in whole or~~
 29 ~~in part by the state of Idaho or authorized by the state water resource board~~
 30 ~~shall not legislature may be the basis of any claim of liability, including~~
 31 ~~but not limited to trespass or public or private nuisance, and shall not re-~~
 32 ~~quire any state or local permits.~~

33 (7) An individual who authorizes or engages in cloud seeding without
 34 legislative approval is guilty of a felony and shall be subject to imprison-
 35 ment for up to one (1) year or a fine of not more than fifty thousand dollars
 36 (\$50,000), or both.

37 SECTION 2. An emergency existing therefor, which emergency is hereby
 38 declared to exist, this act shall be in full force and effect on and after
 39 July 1, 2026.